

21STCV05853 21STCV05853

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Case Number: 21STCV05853 Hearing Date: July 2, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

JOSE CARRANZA, et al.,

Plaintiffs,

vs.

GENERAL MOTORS, LLC,

Defendant.

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CASE NO.: 21STCV05853

[TENTATIVE] ORDER GRANTING IN PART PLAINTIFFS'
MOTION FOR ATTORNEY FEES, COSTS, AND EXPENSES

Dept. 506

8:30 a.m.

July 2, 2026

Plaintiffs

Jose Carranza and Suzette Carranza and Defendant General Motors LLC have reached
a settlement in this Song-Beverly action.

On September 18, 2025, Plaintiffs filed a motion for attorney fees costs.

Plaintiffs'

request for judicial notice of other trial court orders is denied. The federal orders are unpublished and nonbinding,
and the trial court orders are unpublished and nonprecedential. (See Santa Ana Hospital Medical Center v. Belshe
(1997) 56 Cal.App.4th 819, 831 ["a written trial court ruling has no precedential
value"].)

Plaintiffs'

evidentiary objections are overruled.

DISCUSSION

As

the prevailing party, Plaintiffs are entitled to an award of reasonable attorney
fees and expenses. (Civ. Code, § 1794, subd.

(d.) Plaintiffs request a total of \$86,177.95, consisting of \$58,472.00 in attorney fees (\$54,472.00 billed plus \$4,000.00 for this motion), \$19,065.20 as an additional 0.35 lodestar enhancement, and \$8,640.75 in costs and expenses. (Motion at p. i.)

A. Attorney Fees

California

courts apply the “lodestar” approach to determine what attorney fees are reasonable. (See, e.g., *Holguin v. DISH Network LLC*

(2014) 229 Cal.App.4th 1310, 1332.) This

inquiry “begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.”

(*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) From there, the “lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee

at the fair market value for the legal services provided.” (Ibid.) Relevant factors include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them,

(3) the extent to which the nature of the litigation precluded other employment

by the attorneys, [and] (4) the contingent nature of the fee award.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking fees has the burden

of documenting the appropriate hours expended and hourly rates. (*City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 784.)

Plaintiffs

incurred \$54,472.00 in attorneys fees for 122.1 hours of work, plus \$4,000.00 anticipatorily billed for this motion. Counsel's rates are

generally reasonable for experienced attorneys in Los Angeles specializing in these types of cases. But because they are experienced

with Song-Beverly litigation, they should be more efficient in those types of cases than less experienced attorneys.

The

number of staff on the case indicates inefficiencies. Plaintiffs acknowledge that 18 attorneys and a law clerk were staffed on this case, and “only 6 attorneys . . . accounted for 84

hours out of the 122.7 total hours billed (70%).” (Motion at p. i, fn. 1.) With so many attorneys working on the case, there were some inefficiencies when each new attorney needed to review the case file to learn the case. The billing records also

reflect inefficiencies in the number of hours for certain tasks, such as drafting boilerplate discovery requests and motions.

The Court has seen many similar actions brought by Plaintiffs' counsel. The complaints, discovery issues, and fee motions

are similar across the cases brought by Plaintiffs' counsel. Therefore, less time is needed to draft these documents, and some deduction is warranted.
(See Opposition at pp. 5-9, 12.)

Plaintiffs

request an additional lodestar multiplier of 0.35. "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation." (Ketchum, supra, 24 Cal.4th at p. 1139.) This matter was not noticeably different from other lemon law cases, did not involve complex or novel legal issues warranting a multiplier, and Plaintiffs' counsel has extensive experience litigating similar matters. Despite the length of time from case inception to settlement, there are no indications that Plaintiffs' counsel engaged in any actions different from a typical strategy to achieve this result.

The

Court declines to add a positive multiplier.
Instead, the Court will apply a negative multiplier of 0.8 (20% reduction) due to the inefficiencies caused by overstaffing and excessive billing for boilerplate items. (Cash v. County of Los Angeles (2025) 111 Cal.App.5th 741, 749.)

Considering

the type of case, complexity of the case, length of litigation, and the record as a whole, the Court concludes that a reasonable amount of attorney fees is \$46,777.60 (\$58,472.00 minus \$11,694.40).

B. Costs and Expenses

Defendant

argues that all costs should be stricken because Plaintiffs did not file a memorandum of costs and it is not possible to determine what was reasonable. (Opposition at p. 13.)

A

prevailing plaintiff in a Song-Beverly action may recover all "costs and expenses . . . determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Code Civ. Proc., § 1794, subd. (d).) "[I]t is clear the Legislature intended the word 'expenses' to cover items not included in the detailed statutory definition of 'costs.'" (Jensen v. BMW of North America, Inc. (1995))

35 Cal.App.4th 112, 137.)

Plaintiffs'

costs and expenses are reasonable, and Defendant's opposition does not provide any grounds to strike the costs and expenses.

CONCLUSION

The

motion for attorney fees and costs is GRANTED IN PART. The Court awards Plaintiffs \$46,777.60 in attorney fees and \$8,640.75 in costs and expenses.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 2nd day of July 2026

Hon. Thomas D. Long

Judge of the Superior
Court